

[*159] case the void legacy would have resulted to *the heir, and not have been included in the residuary clause. Now, by the late Wills Act, a residuary devise, unless a contrary intention appear by the will, is made to sweep every interest undisposed of in real estate, as a residuary bequest already did in respect of personal estate (*a*).

Construction of "personal estate" as applicable to proceeds from sale of real estate.—If a testator direct his lands to be sold, and afterwards add a general bequest of all his *personal estate* (*b*), or appoint a person *residuary executor* (*c*), any part of the proceeds of the sale that is undisposed of will not form part of the residuary fund in the first case, or pass to the residuary executor in the second; for nothing, properly speaking, is a testator's "*personal estate*," but what possesses that character at the moment of his decease (*d*).

"Personal estate" in certain cases may pass such proceeds.—But the intention of converting the property absolutely by the sale, so as to make the proceeds undisposed of by the will pass by the description of the testator's "*personal estate*," may be collected from a will specially worded (*e*); and the blending of the real and personal estate into one fund will be regarded as a circumstance in some degree indicative of such an intention (*f*), and this of course will be the case, where the testator expressly directs the proceeds to be considered as part of his personalty (*g*).

Watson v. Earl of Lincoln, Amb. 325; *Oke v. Heath*, 1 Ves. 141, *per* Lord Hardwicke; *Cambridge v. Rous*, 8 Ves. 25, *per* Sir W. Grant; *Doe v. Underdown*, Willes, 203. But see *Page v. Leapingwell*, 18 Ves. 463; but it does not appear that the heir was a party, and the question was not discussed.

(*a*) 1 Vict. c. 26, s. 25.

(*b*) *Maugham v. Mason*, 1 V. & B. 410; *Smith v. Harding*, W. N. 1874, p. 101; and see *Gibbs v. Rumsey*, 2 V. & B. 294.

(*c*) *Berry v. Usher*, 11 Ves. 87.

(*d*) See *Maugham v. Mason*, 1 V. & B. 416.

(*e*) *Mallabar v. Mallabar*, Cas. t.

Talb. 78; *Brown v. Bigg*, 7 Ves. 279; *Court v. Buckland*, 1 Ch. D. 605; *Durour v. Motteux*, 1 Ves. 321. (See *Motteux's* will correctly stated, *Jones v. Mitchell*, 1 S. & S. 292, note (*d*). See *Observations on Mallabar v. Mallabar*, and *Durour v. Motteux*, in *Maugham v. Mason*, 1 V. & B. 416.)

(*f*) Compare *Durour v. Motteux*, 1 Ves. 321, with *Maugham v. Mason*, 1 V. & B. 417; *Hutcheson v. Hammond*, 3 B. C. C. 148, *per* Lord Thurlow; but see *Berry v. Usher*, 11 Ves. 87.

(*g*) *Kidney v. Coussmaker*, 1 Ves. jun. 436; and see *Field v. Peckett*, (No. 1), 29 Beav. 568, and *Lowes v. Hackward*, 18 Ves. 171. In *Collins*